

TENTATIVE RULINGS

DEPARTMENT N17

Judge Craig L. Griffin

Date: March 16, 2026

Time: 2:00 PM

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1	Zavala vs. Becker et al.	Before the Court is the Motion for Attorneys' Fees and Costs filed on 9/29/25 by Karl Mark Becker and Gabrielle Becker-Irvin ("Defendants"). Plaintiff Riordan Zavala ("Plaintiff") has belatedly filed an Opposition thereto, asserting therein that other obligations had prevented him from timely submitting his Opposition. But as this Motion had been pending since 9/29/25, that explanation did not suffice to excuse the delay. The Court therefore will not consider Plaintiff's untimely Opposition. The Motion seeks an award of attorney's fees pursuant to C.C.P. § 425.16(c), in the amount of \$8,204, for fees incurred on Defendants' successful anti-SLAPP motion. The Court finds that the hourly rates claimed are reasonable in context here, and that the amounts of time claimed for the work reflected in ROA 96 at Ex. 1 is reasonable in context. However, the fee claim included anticipated fees for a reply to Plaintiff's Opposition. In light of the tardy Opposition, no such reply has been received by the Court. The Court therefore has deducted the 1.5 hours anticipated for preparing the reply. The Court thus will GRANT IN PART, to award the reduced sum of \$7,431.50 for attorney's fees incurred on the underlying anti-SLAPP motion, and in claiming fees through this motion.

		The Motion also seeks costs as the “prevailing party” under C.C.P. §§ 1032 and 1033.5, in the amount of \$1,119.55. Defendants base that request on a Memorandum of Costs (“MOC”) that Defendants had “filed concurrently herewith.” (Leighton Decl., ¶ 9.) But the MOC filed on 9/29/25 differed substantially, as it claimed costs in the amount of \$279.50. (ROA 94.) Defendants may have intended to instead point to the MOC filed on 8/14/25 (ROA 73). But on 8/14/25, they were not yet the prevailing parties in this case. As the only MOC filed since Defendants became prevailing parties is ROA 94, claiming \$279.50 in costs, that sum may now be recovered, as Plaintiff did not timely move to strike or tax the costs in that MOC. (See CRC 3.1700(b)(1).) Defendants are therefore directed to submit a proposed judgment for the \$7,431.50 sum awarded here for fees under C.C.P. § 425.16(c), and the \$279.50 in costs that were timely claimed in ROA 94. Defendants are to give notice of this ruling.
2	Post v. Chung	The motion for summary judgment filed by defendant Ryan Samuelian D.C. (DOE 1) (Dr. Samuelian) directed to the complaint of plaintiff Madeleine Post (Plaintiff) is DENIED. As the party moving for summary judgment, defendant has the burden to show it is entitled to judgment with respect to all theories of liability asserted by plaintiff. <i>Lopez v. Sup.Ct. (Friedman Brothers Inv. Co.)</i> (1996) 45 Cal.App.4th 705, 717; <i>Hedayati v. Interinsurance Exchange of Automobile Club</i> (2021) 67 Cal.App.5th 833, 846—where defendant moved for summary judgment without negating all liability theories in plaintiff’s complaint, and did not seek summary adjudication in the alternative, trial court should have “stopped there,” and concluded defendant did not meet its initial burden (internal quotes omitted). “There is no obligation on the opposing party ... to establish anything by affidavit unless and until the moving party has by affidavit stated facts establishing <i>every elemen</i> ... necessary to sustain a judgment in his favor.” <i>Consumer Cause, Inc. v. SmileCare</i> (2001) 91 Cal.App.4th 454, 468 (emphasis in original; internal quotes omitted). The Court finds Dr. Samuelian failed to meet his initial burden of demonstrating the nonexistence of a triable issue of fact as to whether he can be liable for Plaintiff’s injuries based on the theory he is an alter ego of defendant Back to Basics Health and Wellness (Back to Basics). Plaintiff alleged alter ego liability in her complaint. (See Compl., ¶ 6.) It was thus incumbent upon Dr. Samuelian to show he is entitled to judgment with respect to this theory. However, in the motion, Dr. Samuelian completely failed to address the alter ego theory of liability or discuss its requirements. See <i>Sonora Diamond Corp. v. Superior Court</i> (2000) 83 Cal.App.4th 523, 538 [discussing alter ego

		liability]. Without a discussion or any argument regarding alter ego liability, Dr. Samuelian has failed to meet his initial burden of demonstrating he is entitled to summary judgment as to all theories of liability asserted by Plaintiff. In the Reply, Dr. Samuelian points to his declaration testimony in which he states, "I maintain that at all times relevant to this matter, I have maintained separate finances from my professional corporations, with no commingling of funds. My professional corporations have consistently observed all corporate formalities required by law." (UMF 15, Samuelian Decl., ¶ 5.) Given the numerous factors courts consider in assessing alter ego liability (see <i>Zoran Corp. v. Chen</i> (2010) 185 Cal.App.4th 799, 811–812), the Court finds the two conclusory sentences in Dr. Samuelian's declaration are insufficient to demonstrate, as a matter of law, that there is no unity of interest and ownership between Back to Basics and Dr. Samuelian. Due to the failure to address the alter ego theory of liability in the moving papers and the lack of sufficient evidence on this issue, the Court finds Dr. Samuelian failed to meet his initial burden. Accordingly, the motion is DENIED. The Court declines to rule on Plaintiff's evidentiary objections as not material to the disposition of the motion. (Code Civ. Proc., § 437c(q).) Counsel for Plaintiff is ordered to give notice of this ruling.
3	Myers v. Compassionate Heart Senior Care, Inc.	Before the Court is a demurrer filed by defendant Bank of America, N.A. (Defendant) on the second amended complaint of plaintiff David J. Myers (Plaintiff). For the reasons set forth below, this action is STAYED pending substitution of the plaintiff. Counsel for Plaintiff has informed the Court that Plaintiff recently died on November 17, 2025 and his daughter Jill Myers has filed a petition in probate court to appoint her as the personal representative of Plaintiff's estate in order to continue this action. (ROA 188, 213.) Counsel contends the petition was originally scheduled for hearing on March 4, 2026 but was continued to April 29, 2026 "because there are several probate notes that must be cleared before the court can rule on the petition." (ROA 213 – Declaration of Michelle Leight ¶ 8.) Due to the uncertainty of when and if the petition will be granted, the Court hereby stays this action pending substitution of plaintiff. (<i>Freiberg v. City of Mission Viejo</i> (1995) 33 Cal.App.4th 1484, 1489 ["Trial courts generally have the inherent power to stay proceedings in the interests of justice and to promote judicial efficiency"].) The Court also continues the case management conference to July 17, 2026, at 9:30 a.m. in Department N17. The clerk shall give notice of this ruling.

4	Martinez v. High Horse Saloon., et al.	Defendant 100 North LLC dba High Horse Saloon’s demurrer to the Fourth and Seventh Causes of Action of the Complaint is SUSTAINED with leave to amend. Defendant 100 North LLC dba High Horse Saloon’s motion to strike is GRANTED with leave to amend. 1. DEMURRER <u>Fourth Cause of Action for Negligence Per Se:</u> Evidence Code section 669 codifies the common law doctrine of negligence per se and allows proof of a statutory violation to create a presumption of negligence in specified circumstances. (<i>Elsner v. Uveges</i> (2004) 34 Cal.4th 915, 927.) The doctrine, however, “is not a separate cause of action, but creates an evidentiary presumption that affects the standard of care in a cause of action for negligence.” <i>Turner v. Seterus, Inc.</i> (2018) 27 Cal.App.5th 516, 534. Here, the Complaint alleges a third cause of action for negligence based on the security guard’s alleged conduct in grabbing Plaintiff and throwing him to the ground. (Complaint, ¶¶ 33–37.) The fourth cause of action for negligence per se incorporates those allegations and asserts that the same conduct violated Penal Code section 242 (battery). <i>Id.</i>, ¶¶ 38–42. Because negligence per se is an evidentiary doctrine, rather than an independent cause of action, the alleged statutory violation may support Plaintiff’s negligence claim by establishing breach under Evidence Code section 669, but it does not create a separate basis for liability. Accordingly, the fourth cause of action for negligence per se merely duplicates the negligence claim. Thus, the demurrer to the fourth cause of action is SUSTAINED. <u>Seventh Cause of Action for Negligent Hiring, Supervision, or Retention of Employee</u> Generally, an employer may be liable to a third person for negligence in hiring or retaining an employee who is incompetent or unfit. <i>Phillips v. TLC Plumbing, Inc.</i> (2009) 172 Cal.App.4th 1133, 1139. Negligence liability will be imposed if the employer knew or should have known that hiring the employee created a particular risk or hazard and that the particular harm materialized. (<i>Ibid.</i>) Liability for negligent hiring or retention is a form of direct negligence liability, not vicarious liability. <i>Id.</i> at pp. 1139–1140. Here, the Complaint alleges that HHS had a duty to hire and train competent security personnel and that it failed to properly hire, screen, train, and supervise the security guard who injured Plaintiff. (Complaint, ¶¶ 58–61.) However, these allegations are largely conclusory and do not plead facts showing that HHS knew or should have known the security guard was unfit or had a propensity for the alleged misconduct, or that HHS ratified the conduct. On demurrer, the court accepts properly pleaded material facts as true, but not
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		contentions, deductions, or conclusions of fact or law. <i>Serrano v. Priest</i> (1971) 5 Cal.3d 584, 591; <i>Travelers Indemnity Co. of Conn. v. Navigators Specialty Ins. Co.</i> (2021) 70 Cal.App.5th 341, 358-359. Accordingly, the demurrer to the seventh cause of action is SUSTAINED. 2. MOTION TO STRIKE To plead a claim to recover punitive damages, a plaintiff must plead and show one of the following bases for imposition of exemplary damages, i.e. malice, oppression, or fraud. Civ. Code, § 3294(a). The statute specifically defines “malice” means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others. Civ. Code, § 3294(c)(1). To plead a claim to recover punitive damages against an employer, a plaintiff must plead facts showing in relevant part that the employer through an officer, director, or managing agent, “authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud or malice.” Civ. Code, § 3294(b). Punitive damages cannot be pled in conclusory terms, instead the facts supporting a claim for punitive damages must be set out clearly, concisely, and with particularity. <i>Smith v. Superior Court</i> (1992) 10 Cal.App.4th 1033, 1041-1042. Here, the Complaint alleges that a security guard grabbed Plaintiff and threw him to the pavement, causing injuries. Complaint, ¶¶ 13–16. While these allegations may support claims against the security guard (an employee), the Complaint does not allege facts showing that HHS (the corporate employer), through an officer, director, or managing agent, authorized or ratified the conduct, or otherwise acted with malice, oppression, or fraud. Accordingly, the allegations are insufficient to support punitive damages against HHS, and the motion to strike is GRANTED. Should Plaintiff desire to file an amended complaint that addresses the issues in this ruling, Plaintiff shall file and serve the amended complaint within 15 days of service of the notice of ruling. Defendant to give notice.
5	Konzelman v. Cushman & Wakefield U.S. Inc. et al	The Motion for Leave to Amend Operative Complaint, filed on 12/23/25 by Plaintiff Regina Frances Konzelman (“Plaintiff”) is GRANTED. Plaintiff here has complied with C.R.C. 3.1324, and has adequately explained the reasons for seeking relief at this time.

		The Opposition filed by Defendants Cushman & Wakefield U.S., Inc., Karen Scott, Lorraine Drown, and Kelly Motley ("Defendants") fails to show that leave to amend should be denied here. Although Plaintiff should have promptly sought leave to amend based on her alleged discovery of new facts in August 2025, Defendants have not shown substantial prejudice due to that relatively brief delay. Based on a stipulation, trial has been reset for 11/16/26, along with all related dates, so Defendants have adequate time for any additional discovery deemed necessary. In addition, as Defendants' MSJ hearing date has been reset for 8/17/26, Defendants have time to file an amended motion to also address the additional claims if Defendants wish to do so. Challenges on the merits of the proposed amended pleading may be better addressed on demurrer or other appropriate motion. (<i>Kittredge Sports Co. v. Sup.Ct.</i> (1989) 213 Cal.App.3d 1045, 1048.) This Motion is therefore granted. Plaintiff is to promptly file and serve her First Amended Complaint, and give notice of this ruling.
6	Christine Fleming v. Brian Baron, in his role as Guardian ad Litem	<u>SPECIAL MOTION TO STRIKE</u> <u>Anti-SLAPP Law</u> "A cause of action against a person arising from any act of that person in furtherance of the person's right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue shall be subject to a special motion to strike, unless the court determines that the plaintiff has established that there is a probability that the plaintiff will prevail on the claim." Code Civ. Proc., § 425.16, subd. (b)(1). "Section 425.16 posits [] a two-step process for determining whether an action is a SLAPP. First, the court decides whether the defendant has made a threshold showing that the challenged cause of action is one arising from protected activity. A defendant meets this burden by demonstrating that the act underlying the plaintiff's cause fits one of the categories spelled out in section 425.16, subdivision (e). If the court finds that such a showing has been made, it must then determine whether the plaintiff has demonstrated a probability of prevailing on the claim." <i>Navellier v. Sletten</i> (2002) 29 Cal.4th 82, 88 (<i>Navellier</i>). The anti-SLAPP statute "shall be construed broadly." Code Civ. Proc., § 425.16, subd. (a). <u>Protected activity</u> Section 425.16, subdivision (e) defines protected activity to include: (1) any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law, (2) any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law, (3) any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest, or (4) any other

conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest.”

Defendant bears the burden of demonstrating the challenged cause of action is one arising from protected activity. *Navellier, supra*, 29 Cal.4th at p. 88. The burden “is not an onerous one.” *Optional Capital, Inc. v. Akin Gump Strauss, Hauer & Feld LLP* (2017) 18 Cal.App.5th 95, 112 (*Optional Capital*.) The critical consideration is whether the cause of action is based on protected activity. (*Navellier, supra*, 29 Cal.4th at p. 89, citations omitted.) The focus is on the defendant’s activity that gives rise to his or her asserted liability—and whether that activity constitutes protected speech or petitioning.” *Id.* at p. 92. “[C]ourts have adopted ‘a fairly expansive view of what constitutes litigation-related activities within the scope of section 425.16.” *Optional Capital, supra*, 18 Cal.App.5th at p. 113, citation omitted.

Plaintiff’s complaint alleges causes of action for negligence, breach of duty, and violation of rights. Specifically, Plaintiff alleges Defendant failed to meet his obligations as guardian ad litem by making an admission to the Court that he did not review the case file, making a misrepresentation to the Court relating to his duties, and submitting biased and incomplete reports in the dependency action. (Compl. ¶¶ 2-3.)

Defendant contends “the gravamen of all of the causes of action set forth in the Complaint, arise from this defendant’s appointment by the Court as the guardian ad litem, which is clearly in the context of a judicial proceeding as defined in Section 425.16(e).” (Mtn. at 10:9-12.) Thus, Defendant contends “the entire complaint arises out of protected conduct.” (Mtn. at 10:17-18.)

Plaintiff contends “[t]he gravamen of Plaintiff’s complaint is that Defendant BARON allowed and directed Rebecca Galvan, a paralegal, to conduct interviews of the minor, rather than the GAL who was ordered by the court to do so” and Defendant then “submit[ted] a declaration to the court stating his assessment was based upon Baron’s first hand assessment.” (Opp. at 7:14-18; 27-28)

As Plaintiff recognizes, her claims against Defendant are based on alleged breaches of his duties arising from his role as the court-appointed guardian ad litem. Plaintiff relies on Defendant’s statements and writings made before a judicial proceeding to support her claims. Construing the statute broadly as required by section 425.16, subdivision (a), the Court therefore finds Defendant’s alleged acts and omissions as guardian ad litem in the dependency action were protected activity pursuant to section 425.16, subdivision (e).

Probability of prevailing

“[U]nder the second prong (if the moving party met its burden), the responding party has the burden to establish that its challenged

claims have at least 'minimal merit.'" *Third Laguna Hills Mutual v. Joslin* (2020) 49 Cal.App.5th 366, 371, citations omitted.

"To show a probability of prevailing, the opposing party must demonstrate the claim is legally sufficient and supported by a sufficient prima facie showing of evidence to sustain a favorable judgment if the evidence it has submitted is credited." *Mitchell v. Twin Galaxies, LLC* (2021) 70 Cal.App.5th 207, 217, citation omitted.

"In deciding the question of potential merit, the trial court considers the pleadings and evidentiary submissions of both the plaintiff and the defendant; though the court does not weigh the credibility or comparative probative strength of competing evidence, it should grant the motion if, as a matter of law, the defendant's evidence supporting the motion defeats the plaintiff's attempt to establish evidentiary support for the claim. [The court] accept[s] as true the evidence favorable to the plaintiff. A plaintiff must establish only that the challenged claims have minimal merit to defeat an anti-SLAPP motion. *Id.* at pp. 217–18.

Defendant contends the entire action is barred by quasi-judicial immunity and the litigation privilege.

Quasi-Judicial immunity

"The concept of judicial immunity is longstanding and absolute, with its roots in English common law. It bars civil actions against judges for acts performed in the exercise of their judicial functions³ and it applies to all judicial determinations, including those rendered in excess of the judge's jurisdiction, no matter how erroneous or even malicious or corrupt they may be. The judge is immune unless "he has acted in the clear absence of all jurisdiction." Beyond doubt, the doctrine of "civil immunity of the judiciary in the performance of judicial functions is deeply rooted in California law."

"The rationale behind the doctrine is twofold. First, it "protect[s] the finality of judgments [and] discourag[es] inappropriate collateral attacks." Second, it "protect[s] judicial independence by insulating judges from vexatious actions prosecuted by disgruntled litigants." With respect to the latter reason, the immunity is necessary in order to have an independent and impartial judiciary. The public is best served when its judicial officers are free from fear of personal consequences for acts performed in their judicial capacity. "If judges were personally liable for erroneous decisions, the resulting avalanche of suits, most of them frivolous but vexatious, would provide powerful incentives for judges to avoid rendering decisions likely to provoke such suits. The resulting timidity would be hard to detect or control, and it would manifestly detract from independent and impartial adjudication." "It is a judge's duty to decide all cases within his jurisdiction that are brought before him, including controversial cases that arouse the most intense feelings in the litigants. His errors may be corrected on appeal, but he should not have to fear that unsatisfied litigants may hound him with litigation charging malice or corruption. Imposing such a burden on judges

would contribute not to principled and fearless decision-making but to intimidation.” “The justification for [judicial immunity] is that it is impossible to know whether [a person's claim against an official] is well founded until the case has been tried, and that to submit all officials, the innocent as well as the guilty, to the burden of a trial and to the inevitable danger of its outcome, would dampen the ardor of all but the most resolute, or the most irresponsible, in the unflinching discharge of their duties.’ ” Thus, the protection must be absolute, even to the malicious or corrupt judge. The effect of judicial immunity is that the action against the judicial officer must be dismissed. ” *Howard v. Drapkin* (1990) 222 Cal.App.3d 843, 851–53.

“Under the concept of ‘quasi-judicial immunity,’ California courts have extended absolute judicial immunity to persons other than judges if those persons act in a judicial or quasi-judicial capacity.” *Id.* at 853-853. California law is clear that quasi-judicial immunity applies to a court appointed guardian ad litem. *McClintock, supra*, at p. 551.

Defendant was appointed by the Court to serve as guardian ad litem for the minor child on 9/25/24. (RJN, No. 1b.) As discussed above, Plaintiff’s complaint is based on Defendant’s actions or inactions as a court-appointed guardian ad litem.

Plaintiff contends the quasi-judicial immunity does not apply for the same reason discussed above, stating, “the Court made a direct order that the GAL interview the children himself. The GAL did not! Rather in violation of the court order the GAL somehow saw fit to delegate, a non-delegable GAL duty, to a paralegal who is unlicensed in the State of California to deal with evaluating children and then submit a declaration to the court stating his assessment was based upon Baron’s first hand assessment. The interview was illegal under B&P Cd. §6450 and the subsequent declaration presented by Baron was fraudulent. (RPC 3.3.).” (Opp. at 8:26-9:4.)

But quasi-judicial immunity applies to all acts of the guardian ad litem within the scope of their appointment, even in the face of allegations that he had violated a court order or submitted a false declaration. If a court-appointed guardian ad litem is violating court orders or submitting false declarations, the remedy is to seek relief from the court with jurisdiction over the appointment. If the court does not grant the requested relief, the remedy is to take an appeal. Collateral lawsuits against the guardian ad litem are absolutely barred.

Litigation privilege

Civil Code section 47 provides, in part: “A privileged publication or broadcast is one made: . . . (b) In any . . . (2) judicial proceeding . . .” (Civ. Code, § 47, subd. (b).)

“The principal purpose of Civil Code section 47, subdivision (b), is to afford litigants . . . the utmost freedom of access to the courts

		without fear of being harassed subsequently by derivative tort actions. Although originally enacted with reference to defamation, the privilege is now held applicable to any communication, whether or not it amounts to a publication, and all torts except malicious prosecution. Further, it applies to any publication required or permitted by law in the course of a judicial proceeding to achieve the objects of the litigation." <i>McClintock, supra</i>, 219 Cal.App.4th at pp. 553-554]. As discussed above, Plaintiff contends Defendant made certain admissions to the Court regarding his review of case files, made a misrepresentation to the Court relating to his duties, and submitted biased and incomplete reports in the dependency action. Such are communications "in the course of a judicial proceeding" covered by the litigation privilege. Given the application of both the quasi-judicial immunity and litigation privilege, the Court finds Plaintiff has not met her burden to establish that her challenged claims have at least "minimal merit." The Special Motion to Strike under the Anti-SLAPP law is GRANTED. <u>ATTORNEY'S FEES AND COSTS</u> Code of Civil Procedure section 425.16, subdivision (c)(1) provides, "a prevailing defendant on a special motion to strike shall be entitled to recover that defendant's attorney's fees and costs." The Court GRANTS Defendant's request for attorney's fees and costs in the reduced amount of \$5,605.78 (7 hours x \$721.54/hour (midpoint between \$240 and \$1,203.07) + \$555.00.) <u>DEMURRER</u> The demurrer is MOOT. <u>MOTION FOR CHANGE OF VENUE</u> The motion for change of Venue is DENIED. The Court declines to award any sanctions for the bringing of the motion. <u>CASE MANAGEMENT CONFERENCE</u> The Case Management Conference is OFF-CALENDAR. Moving party to give notice and submit a proposed order with proof of service within 15 days.
7	Jackson v. Phancao, et. al.	Before the Court is a Special Motion to Strike under the anti-SLAPP statute brought by Defendants David E. Libman and Law Office of David E. Libman, APC (collectively "Libman") as to the Complaint filed by Plaintiff Chapter Kris Jackson.

		In an opposition filed the last court day before the hearing on the motion, counsel for Plaintiff asserts that despite Defendant's proof of service showing overnight service of the moving papers, she never received them. She further asserts that her office building is large with over 200 suites and numerous independent businesses operating within the same location, thus providing the opportunity for overnight delivery correspondence to be misplaced. To provide Plaintiff with the opportunity to oppose the motion, the Court CONTINUES the hearing on the special motion to strike to April 13, 2026, at 2:00 p.m. Plaintiff is to give notice.
8	Hallett v. Waterfront Resort Properties, LP et al	Before the Court at present is the continued hearing on five discovery motions, as follows: 1. Motion to Compel Plaintiff's Further Responses to Form Interrogatories, Set One, etc., filed as ROA 105 on 9/3/25, by defendants Waterfront Resort Properties LP, De Anza Corporation, Newport Dunes Resort and Marina Partnership ("NDR"), Dunes Resort LP, Dunes Resort LLC, Terra Vista Management Inc. ("TVM"), and Phillip Ravenna ("Ravenna") (collectively the "Defendants") ("Motion 1" here); 2. Motion to Compel Plaintiff's Further Responses to Special Interrogatories, Set One, etc., filed as ROA 115 on 9/3/25, by the Defendants ("Motion 2" here); 3. Motion to Compel Plaintiff's Further Responses to Requests for Production, Set One, filed as ROA 110 on 9/3/25, by the Defendants ("Motion 3" here); 4. Motion for a Protective Order, etc., filed as ROA 145 on 12/23/25, by Defendant NDR ("Motion 4" here); and 5. Motion for a Protective Order, etc., filed as ROA 189 on 1/29/26, by the Defendants other than NDR ("Motion 5" here). <u>For Motions 1-3</u>, Defendants acknowledge that their meet and confer efforts were made last minute, but also assert that Plaintiff Darrell Hallett ("Plaintiff") refused to supplement any of his responses. (Emami Decl., ¶ 4, ROAs 96, 98 and 103.) Plaintiff disputes that characterization, but has demonstrated here that he has in fact refused to supplement any of the responses. In context, Defendants' meet and confer efforts thus appear adequate here. <u>Motion 1 is GRANTED IN PART</u>. Motion 1 is directed solely to Plaintiff's responses to Form Interrogatory ("FROG") No. 17.1, which Plaintiff inadequately answered by stating only "Yes." (ROA 106, Ex. E.) FROG No. 17.1 clearly requires, for every Request for Admission ("RFA") response that is not an unqualified admission, that Plaintiff provide specific information as to that response. (ROA 106, Ex. A.) Plaintiff clearly did not comply. Plaintiff asserts that he has no further duty to respond, as Box 4 was not checked as to the

definition of "Incident." But FROG No. 17.1 does not use that definition, so the omission is not relevant to this Motion.

However, for the corresponding RFAs, Plaintiff denied on Nos. 1-34, admitted on No. 35, and objected to the remainder as no declaration for additional discovery was included with the RFAs. As Plaintiff appears to be correct that no such declaration was included (ROA 106, Ex. C), he was entitled to object for the balance. (C.C.P. § 2033.030(b).) Plaintiff is therefore ordered to provide complete verified supplemental responses to FROG No. 17.1, as to his responses for RFA Nos. 1-34 only, within 15 days.

Defendants' request for sanctions is **GRANTED IN PART**. Although some sanctions are warranted, in context, the Court finds that only \$1,180 of the requested sum should be imposed against Plaintiff on this Motion. Plaintiff is to pay those sanctions to Defendants, through their counsel of record, within 15 days.

Motion 2 is **DENIED**. Motion 2 is directed to Special Interrogatory ("SROG") Nos. 1-15. However, the Separate Statement does not comport with the SROGs as actually posed and the responses given. (Compare ROA 94 with ROA 106 at Exs. B and F.) Under C.R.C. 3.1345(c), the Separate Statement must provide all the information necessary to understand each discovery request and all the responses to it that are at issue, and be full and complete so that no person is required to review any other document in order to determine the full request and the full response. Defendants failed to meet that requirement here.

Motion 3 is **GRANTED IN PART**. Motion 3 is directed to Requests for Production ("RFPs") Nos. 1-33. Plaintiff responded to each solely with objections as to copying logistics. That does not justify the failure to substantively respond.

Under C.C.P. § 2031.030(c), the demanding party is to specify a reasonable time and place for the inspection. The RFPs at issue instructed Plaintiff to produce "by delivering or mailing legible copies" to defense counsel. (ROA 106, Ex. D, at p. 2.) As Plaintiff would evidently prefer to allow the defense to inspect and copy responsive documents, Defendants are to specify a reasonable time and place, 15 days hence, for that to occur. Plaintiff is ordered to provide verified supplemental responses for RFP Nos. 1-33 within 15 days, and to produce all responsive documents for that inspection at the time and location specified by Defendants. Any concerns as to the reasonableness of the time and place selected by Defendants should be addressed at this hearing.

Defendants' request for sanctions is **GRANTED IN PART**. Although some sanctions are warranted, in context, the Court finds that only \$1,180 of the requested sum should be imposed against Plaintiff on this Motion. Plaintiff is to pay those sanctions to Defendants, through their counsel of record, within 15 days.

Motion 4 is **GRANTED IN PART**. In Motion 4, Defendant NDR seeks a protective order which will excuse it from responding to,

		among other things, 386 RFAs, and 81 SROGs propounded by Plaintiff. Where a motion for protective order challenges a “declaration of necessity” presented to justify more than 35 SROGs or RFAs, the burden is on the propounding party to prove the number of SROGs or RFAs is justified. (C.C.P. §§ 2030.040(b), 2033.040(b).) Plaintiff has not met that burden here. NDR is thus excused from responding to those SROGs and RFAs, except as to the first 35 RFAs and first 35 SROGs propounded by Plaintiff. The Motion also seeks relief for the FROGs propounded by Plaintiff, to the extent that they seek information unrelated to this action, or to an entity defendant. The Motion demonstrates that what is sought in the subject FROGs is primarily unreasonable in context. NDR is thus excused from responding to the FROGs, except as to the FROGs in the 3.0, 4.0, 12.0- 15.0, 17.1 and 50.0 series. To the extent that those FROGs seek objectionable information, NDR may object accordingly, but is not excused from responding at all. However, the Motion fails to show why NDR should not be required to respond to the 32 RFPs at issue here. To the extent that the RFPs seek objectionable material, NDR may object accordingly, but is not excused from responding at all. The Motion is therefore DENIED as to those RFPs. NDR is to provide its responses to those portions of the discovery as to which compliance has not been excused, as discussed above, within 15 days. NDR’s request for sanctions on Motion 4 is DENIED for failure to comply with C.C.P. 2023.040. The hearing on Motion 5 is CONTINUED to March 30, 2026, at 2:00 p.m., in this Department, as the exhibits referenced in ROA 183 were not e-filed with the Notice of Lodgment. Defendants are to file an Amended Notice of Lodgment, including those exhibits. No other further briefing on Motion 5 is permitted. Counsel for Defendants to give notice of these rulings.
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